

"I do not doubt," observed Sir J. Wigram, "the existence of this power in Court: the trustees have the power to sell at law, they can convey the legal estate, but it is only a Court of equity that can recall the property, and if that Court should sanction a sale it would be bound to protect the purchaser" (*a*). The true principle was, that an absolute disposition was then only to be considered a breach of trust when the proceeding was inconsistent with a provident administration of the estate for the benefit of the charity (*b*). And the transaction was strongly assumed to be improvident as against a purchaser until he had established the contrary (*c*).

38. **Recent charity Acts.**—Now under the provisions of the recent Acts the Commissioners of Charities are empowered on application made to them to authorise the *sale* or *exchange* of any part of the charity property (*d*), and the trustees are restricted from any sale, mortgage or charge, *without the consent* of the Commissioners (*e*).

Sales to railway companies.—But this does not interfere with the powers of trustees of charities to sell under *railway* and other *public Acts*, where the legislature has made proper provision for the due application of the purchase-monies (*f*).

39. **Power of trustees to pass the legal estate.**—By another Act, "a majority of two-thirds of the trustees of any charity

(*a*) Attorney-General *v.* Mayor of Newark, 1 Hare, 400; and see *Re Ashton Charity*, 21 Beav. 288; Anon. case, cited Attorney-General *v.* Warren, 2 Sw. 300, 302.

(*b*) See Attorney-General *v.* Warren, 2 Swans. 302; S. C. Wils. 411; Attorney-General *v.* Hungerford, 8 Bl. 437; S. C. 2 Cl. & Fin. 357; Attorney-General *v.* Kerr, 2 Beav. 428; Attorney-General *v.* South Sea Company, 4 Beav. 543; Attorney-General *v.* Newark, 1 Hare, 395; Parke's Charity, 12 Sim. 329; *Re Suir Island Female Charity School*, 3 Jon. & Lat. 171.

(*c*) Attorney-General *v.* Brettingham, 3 Beav. 91.

(*d*) 16 & 17 Vict. c. 137, s. 24; 18 & 19 Vict. c. 124, s. 32; see 23 & 24

Vict. c. 136, s. 16. The 16 & 17 Vict. c. 137, s. 21, authorises improvements with the sanction of the Charity Commissioners; and the 23 & 24 Vict. c. 136, s. 15, authorises the application of charity monies to "any other purpose or object" which the Commissioners may think beneficial, and which is not inconsistent with the foundation.

(*e*) 18 & 19 Vict. c. 124, s. 29. [The power of the Commissioners to authorise a sale of land falling under the provisions of the Allotments Extension Act, 1882 (45 & 46 Vict. c. 80), is not affected by that Act, *Parish of Sutton to Church*, 26 Ch. D. 173.]

(*f*) See the language of 18 & 19 Vict. c. 124, s. 29.